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California lawmakers begin special session to protect state laws from second Trump presidency

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SACRAMENTO, Calif. (AP) — California Gov. Gavin Newsom and state lawmakers returned to the state Capitol on Monday to begin a special session to protect the state's progressive policies ahead of another Trump presidency.

The Democratic governor, a fierce critic of President-elect Donald Trump, is positioning California to once again be the center of a resistance effort against the conservative agenda. He is asking his Democratic allies in the Legislature, who hold supermajorities in both chambers, to approve additional funding for the attorney general's office to prepare for a robust legal fight against anticipated federal challenges.

“We will work with the incoming administration and we want President Trump to succeed in serving all Americans," Newsom said in a statement. "But when there is overreach, when lives are threatened, when rights and freedoms are targeted, we will take action.”

Democratic Assemblymember Jesse Gabriel on Monday introduced legislation to set aside $25 million for legal fees to respond to potential attacks by the Trump administration on state policies regarding civil rights, climate change, immigration and abortion access.

Democratic state Sen. Scott Wiener introduced a budget bill that includes the $25 million for the Department of Justice, which Newsom proposed, and an additional $10 million to help county and city attorneys protect policies from challenges by the federal government.

California sued the first Trump administration more than 120 times to various levels of success.

Trump often depicts California as representing all he sees wrong in America. Democrats, who hold every statewide office in California and have commanding margins in the Legislature and congressional delegation, outnumber registered Republicans by nearly 2-to-1 statewide.

Trump called the Democratic governor “Newscum” during a campaign stop in Southern California and has relentlessly lambasted the Democratic stronghold over its large number of immigrants in the U.S. illegally, its homeless population and its thicket of regulations.

Trump also waded into a water rights battle over the endangered delta smelt, a tiny fish that has pitted environmentalists against farmers, and threatened to withhold federal aid to a state increasingly under threat from wildfires. He also vowed to follow through with his campaign promise of carrying out the mass deportation of immigrants without legal status and prosecuting his political enemies.

Before the special session began, state lawmakers swore in more than two dozen new members and elected leaders for the 2025 legislative session. Lawmakers voted to convene the special session largely along party lines.

“This special session is about sticking up for Californians and for California values,” Wiener said. “It is about ensuring that the president of the United States and his administration actually follow the law.”

Hundreds of people demonstrated around the Capitol on Monday to urge the Legislature to try to stop Trump's mass deportation plans. They carried banners that said “Not one cent for mass deportation” and “MAGA out of California.”

State Attorney General Rob Bonta said his office will protect the state's immigration population, while Newsom last week unveiled a proposal to revive a rebate program for electric vehicle purchases if the incoming Trump administration eliminates a federal tax credit for people who buy electric cars. Newsom is also considering creating a backup disaster relief fund for the wildfire-prone state after Trump's threats.

Bonta announced legislation Monday aimed at bolstering reproductive rights in the state, including by allowing the attorney general to seek monetary penalties against local governments that infringe on those rights. The proposals are part of the state's efforts to guarantee abortion access after the U.S. Supreme Court overturned Roe v. Wade.

Republican lawmakers blasted Newsom and his Democratic allies over the special session. State Sen. Kelly Seyarto, a Republican representing Murrieta in Southern California, said the session would create a more adversarial relationship with the federal government.

"What we're doing today is sending that exact message — that we are going to fight tooth and nail for everything. And you know what? That means they're going to fight us tooth and nail for everything," Seyarto said of the proposed legislation.

Legislators also are expected to spend the year discussing ways to protect dozens of laws expected to be targeted by the Trump administration, including one that has made California a sanctuary for people seeking abortions who live in states where abortion access has been severely limited.

California, the nation's most populous state, was the first to mandate that by 2035 all new cars, pickup trucks and SUVs sold in the state be electric, hydrogen-powered or plug-in hybrids. The state also extends state-funded health care to all low-income residents regardless of their immigration status.

Newsom hasn't provided details about what lawmakers will consider but said he wanted funding in place before Trump's inauguration day, Jan. 20. The state spent roughly $42 million in litigation costs during the first Trump administration, officials said.

California is projected to face a $2 billion budget deficit next year, with bigger shortfalls ahead. Gabriel, who sued the first Trump administration in 2017 when it tried to end a program to shield young immigrants from being deported, said lining up the funding now is "a wise investment."

California successfully clawed back $57 million between 2017 and 2018 after prevailing in a lawsuit to block the Trump administration from putting immigration enforcement conditions on certain federal law enforcement grants. Another legal victory over the citizenship question in the 2020 census forced the federal government to return $850,000 to the state, according to the attorney general's office.

During Trump's first presidency, Democratic attorneys general banded together to file lawsuits over immigration, Trump's travel ban for residents of Muslim countries, the environment, immigration and other topics. But Trump has one possible advantage this time around: He was aggressive in nominating conservative jurists to federal courts at all levels, including the Supreme Court.

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Associated Press journalists Haven Daley and Sophie Austin contributed to this report.

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